

HOUSE BILL NO. 571

INTRODUCED BY S. KLAKKEN, G. OBLANDER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING AERONAUTICS LAWS RELATED TO THE USE OF
AUTOMATIC DEPENDENT SURVEILLANCE-BROADCASTS; AND PROVIDING DEFINITIONS."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Automatic dependent surveillance-broadcasts. (1) ~~No~~ FOR AIRCRAFT
AS DEFINED IN SUBSECTION (2)(A), NO entity, whether a division of government or a private company or
corporation, may use information broadcast or collected by automatic dependent surveillance-broadcast
systems, whether that data originates from ADS-B In or ADS-B Out, as a means for calculating, generating, and
collecting fees from aircraft owners or operators who operate aircraft within the geographic boundaries of the
state.

(2) For the purposes of this section, the following definitions apply:

(a) "Aircraft" has the same meaning as provided in 67-1-101, except the aircraft must have a gross
weight of 9,000 pounds or less and operate under Title 14, part 91, Code of Federal Regulations.

(b) "Automatic dependent surveillance-broadcast" means an advanced aviation surveillance
technology that combines an aircraft's positioning source, aircraft avionics, and a ground infrastructure to create
an accurate surveillance interface between an aircraft and air traffic control. The term consists of two different
services, ADS-B In and ADS-B Out, that can provide information, such as an aircraft's global positioning system
location, altitude, ground speed, and other data, to ground stations and other aircraft, as well as weather and
traffic information to aircraft operators.

NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
integral part of Title 67, chapter 1, part 1, and the provisions of Title 67, chapter 1, part 1, apply to [section 1].

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